

Reply in Support of Petition

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401

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Reply overview

The answer never identifies a privileged communication disclosed in the August 21 letter, so the categorical subject-matter ruling lacks its first necessary step.

The answer confirms rather than cures the missing disclosure: it describes the public letter but identifies no protected content the letter conveyed. Cinder Lake argues that fairness cannot create an intentional disclosure out of a public statement that a review occurred. The reply then addresses adequacy and remedy without reopening the settled briefing schedule.

No adequate means

Protective handling of Ashe's existing memorandum-and-log review copies cannot make later first compelled production of the twenty underlying items and attachments reviewable after the fact.

The new disclosure would provide verbatim communications, full drafts, work product, and attachments that Ashe's protected review copies did not contain as source items. Confidentiality restrictions cannot erase that additional litigation knowledge after final judgment. The reply confines irreparable harm to the entire March 25 compelled protected production and leaves nonprivileged source discovery outside the stay.

Clear right and Rule 502

Mentioning counsel's review is not disclosure of advice. General conclusions and remediation do not reveal the communication itself.

Rule 502(a) is concerned with disclosure of protected information, not reputational benefit from mentioning counsel. The reply distinguishes the public fact of consultation from what counsel or employees communicated. That textual line gives the panel an administrable basis for correcting categorical waiver without announcing immunity for all public references to investigations.

Sky Angel

The controlling analysis examines what information was actually revealed, not merely whether public and privileged materials concern a common topic.

Sky Angel U.S., LLC v. Discovery Communications, LLC, 885 F.3d 271, 276–77 (4th Cir. 2018), does not forbid context, but it requires identifying the information actually disclosed before measuring subject matter and fairness. The letter’s audience and purpose may explain why it was sent; they do not supply missing interview statements or advice.

Hawkins

The burden to establish privilege remains item specific, but it does not authorize categorical waiver before actual disclosure is shown.

Hawkins v. Stables, 148 F.3d 379, 383–85 (4th Cir. 1998), requires Cinder Lake to carry privilege and supports scrutiny of the log. The reply accepts supplementation and entry-specific adjudication on remand. It rejects the leap from burden allocation to universal waiver because a duty to substantiate claims does not prove that an earlier public document intentionally disclosed all related communications.

Fluor

Cinder Lake uses *In re Fluor Intercontinental, Inc.*, No. 20-1241, 2020 WL 1472076 (4th Cir. Mar. 25, 2020) (unpublished), only for its persuasive analogy: no revealed communication and a seven-day complete-production order.

The reply uses Fluor cautiously and compares only the absence of a disclosed communication and the seven-day production period. *Cheney v. U.S. District Court*, 542 U.S. 367, 380–81 (2004), *Mohawk Industries, Inc. v. Carpenter*, 558 U.S. 100, 108–11 (2009), Rule 502, and published circuit law supply the controlling framework. Factual similarity does not create a new categorical rule.

Rule 502(d)

The parties agree the January 9 order governs later-litigation handling prospectively and neither erases nor creates waiver from the August 21 pre-suit letter.

The protective order validly governed Ashe's January and February review copies, later authorized exchanges, clawback, and use restrictions. That prospective effect is undisputed. It does not answer whether the August letter disclosed protected content, and neither party uses the order to rewrite the pre-suit event or attribute a contrary later-handling view to the district court.

Permissible discovery

Employees may answer factual questions and produce ordinary business records without disclosing their confidential communications with counsel.

Calder may obtain claim samples, speak with employees about what they observed, and explore who selected remedial measures through nonprivileged sources. The reply asks only that questions not compel a witness to repeat a confidential request for legal advice or expose counsel's mental impressions without an entry-specific basis. That is a boundary, not a discovery shutdown.

Narrow remedy

Vacate categorical waiver and complete production, remand for item-specific review, and deny any request for a blanket ban on related discovery.

The proposed judgment grants relief only where the categorical premise forced complete production. It denies the requested blanket bar and sends unresolved claims back for ordinary application of privilege, work product, proportionality, and motion-to-compel rules. This formulation tracks the severable targets in the petition and respects the district court's institutional role.

Submission

The reply completes the ordered merits filings. Oral argument remains unavailable unless the court separately and expressly orders it.

With this reply filed on April 13, the briefing ordered by the Court is complete. The case is ready for decision on the papers under the ordinary writ procedure. Counsel recognizes that briefing completion alone creates no right to oral argument; argument may occur only if the Court later enters a separate order setting a date and subjects for discussion.

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